

Real estate devised to British subject and alien upon trust. — In a case where a testator devised real estate to his wife and an *alien* upon trust to sell, and they sold accordingly, and executed a conveyance; a question afterwards arose whether the purchaser had a good title, and with the view of curing the defect an Act of Naturalization was obtained; but it was held, that the common form of the Act of Naturalization did not confirm the purchaser's title *retrospectively*, but that the objection remained. The parties had endeavored to introduce into the bill special words to meet the case, but a departure from the usual course was found impracticable (*d*).

Chattels personal. — In respect of chattels *personal* there was never any objection to an *alien* friend as trustee as regards his ability either to take or to hold the estate.

33 V. c. 14. — Now by 33 Vict. c. 14, sect. 1, an alien may take, acquire, hold, and dispose of *real* and personal property of every description, in the same manner as if he were a natural born subject. The objection, therefore, to an alien being a trustee of freeholds or chattels real has been removed.

Person domiciled abroad not a fit trustee. — If, however, the alien be domiciled abroad, it is an objection to his *fitness* for the office of trustee, as he is not amenable to the jurisdiction of the Court (*e*).

16. Bankrupts not absolutely disqualified. — Bankrupts may be appointed trustees, should any one be disposed to commit the administration of his property to those who have not been sufficiently careful in the management of their own. The past or any subsequent act of bankruptcy will have no operation upon the trust estate.¹

17. Cestuis que trust should not, as a general rule, be appointed trustees. — *Cestuis que trust* are not, as such, incapacitated from being trustees for themselves and others;

(*d*) *Fish v. Klein*, 2 Mer. 431.

Re Harrison's Trust, 22 L. J. N. S. Ch.

(*e*) See *Meinertzhagen v. Davis*, 1 Coll. 335; *Re Guibert*, 16 Jur. 852;

69; *Curtis' Trusts*, 5 I. R. Eq. 429.

¹ *Blin v. Pierce*, 20 Vt. 25; *Lounsbury v. Purdy*, 11 Barb. 490; *Hogan v. Wyman*, 2 Ore. 302; *Ludwig v. Highley*, 5 Barr. 132; *Bank v. Mumford*, 2 Barb. Ch. 596.